

01572068-CU-OR-WJC and (2) *Brian Bendy v. David L. Simpson*, Case No. 2026-01562015-CL-UD-CJC.

The court designates *David L. Simpson v. Brian R. Bendy et al.*, Case No. 30-2026-01572068- CU-OR-WJC, as the lead case and all further documents must be filed under the case number and caption of the lead case.

All subsequent documents must be filed only in the lead case. All documents filed in the consolidated case must include the caption and case number of the lead case, followed by the case number of the other consolidated case. (Cal. Rules of Ct, rule 3.350(d).)

Bendy asks the court to condition consolidation on Plaintiff 1) making an initial payment of over \$43,000 to account for the amount Bendy paid toward the senior deed of trust and certain maintenance expenses, 2) paying \$5,512.20 in advance for each month Plaintiff remains in possession of the Property (calculated from \$183.74 per day), and 3) posting a separate undertaking of six months of the property's occupancy in the amount of \$33,073.20. (Opp'n Br. at pp. 12-13.)

The UD Court previously ordered Plaintiff to pay the reasonable rental value of the property for some time. (Bendy RJN, Exh. 7 ["The Court orders the Defendant to pay Mr. Bendy the reasonable rental value of the property, which is \$176.07 per day for the duration of the stay issued by this Court, which is August 28, 2026, totaling \$5,282.10 plus \$211.15 in HOA fees for a total amount of \$5,493.25. The court orders that Mr. Simpson is to make the payment of \$5,493.25 no later than 5 PM Friday, July 31, 2026, in certified funds to Mr. Bendy. The funds may be delivered to Mr. Bendy care of his counsel at the Ryan Firm, 2603 Main Street, Suite 1225, Irvine, CA 92614."]; see also RJN, Exh. 1 ["The Court orders the Defendant to pay the reasonable rental value plus the monthly HOA fee, which totals \$183.74 per day, for the period from April 11, 2026, to July 28, 2026 (\$183.74 x 109 days), for a total of \$20,027.66. In addition, because the stay continues to the next court date of September 22, 2026, the Court orders the reasonable rental value plus the HOA cost of \$183.74